

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Squad #15	CCRB Case #: 201509617	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/15/2015 12:20 AM	Location of Incident: Third Avenue and East 141st Street; 40th Precinct stationhouse	18 Mo. SOL 2/15/2017	Precinct: 40
Date/Time CV Reported Tue, 11/10/2015 6:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 11/10/2015 6:26 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			Unknown
2. POM Ignacio Rodriguez	14591	955397	PBBX
3. SGT Colin Caesar	01143	929811	PBBX
4. POM Alex Chen	22641	954635	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Colin Caesar	Abuse: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar stopped § 87(2)(b)	A . Substantiated
B . SGT Colin Caesar	Discourtesy: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SGT Colin Caesar	Abuse: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Alex Chen	Abuse: At 3rd Avenue and East 141st Street in the Bronx, PO Alex Chen refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . SGT Colin Caesar	Force: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . SGT Colin Caesar	Force: Inside the 40th Precinct stationhouse, Sgt. Colin Caesar used physical force against § 87(2)(b)	F . Unfounded
G . POM Alex Chen	Force: Inside the 40th Precinct stationhouse, PO Alex Chen used physical force against § 87(2)(b)	G . Unfounded
H . Officers	Force: Inside of the 40th Precinct stationhouse, officers used physical force against § 87(2)(b)	H . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 10, 2015, § 87(2)(b) filed this complaint with the CCRB via its online website.

On August 15, 2015, at approximately 12:20 a.m., § 87(2)(b) went to Two Sha's Nightclub located at 2576 Third Avenue in the Bronx with his friends § 87(2)(b) and § 87(2)(b) (last names unknown). Before going out, all five of them drank approximately two shots of Ciroc vodka, and § 87(2)(b) drove them to the nightclub. Upon arrival at the front of Two Sha's, unidentified police officers approached § 87(2)(b)'s car and stopped him for suspicion of driving under the influence. Because he did not want to have any potential interaction with the police, § 87(2)(b) began to walk north away from the club allegedly accompanied by § 87(2)(b). At Third Avenue and East 141st Street, a marked police vehicle pulled up alongside § 87(2)(b) and he was approached by Sgt. Colin Caesar, PO Alex Chen, and PO Ignacio Rodriguez of Patrol Borough Bronx. Sgt. Caesar stopped § 87(2)(b) for allegedly brandishing a firearm; § 87(2)(b) alleged that § 87(2)(b) was stopped as well. When § 87(2)(b) denied this claim, Sgt. Caesar allegedly said to § 87(2)(b) "You're a smartass" (**Allegations A and B**). Sgt. Caesar and PO Chen arrested § 87(2)(b) for menacing the officers after § 87(2)(b) allegedly said he would kill them.

As he was being escorted to a police vehicle by PO Chen and PO Rodriguez, § 87(2)(b) allegedly asked Sgt. Caesar and PO Chen for their names and shield numbers and both officers allegedly ignored his requests (**Allegations C and D**). As Sgt. Caesar and PO Chen struggled to place a resistant § 87(2)(b) in the police car, Sgt. Caesar allegedly wrapped his forearm around the front of § 87(2)(b)'s neck for approximately sixty seconds in order to pull him into the police car (**Allegation E**). According to § 87(2)(b) this action did not restrict his breathing. Once § 87(2)(b) was transported to the 40th Precinct stationhouse, Sgt. Caesar allegedly flung § 87(2)(b) forward onto the floor inside of the holding cells area while still handcuffed, and PO Chen and numerous unidentified uniformed officers allegedly punched and kicked him on his back while on the floor (**Allegations F through H**).

§ 87(2)(b) was charged with § 87(2)(b).

§ 87(2)(g)

The investigation was unable to obtain video footage for this case.

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s active criminal case, this complaint was not eligible for mediation.
- A FOIL request returned by the Office of the New York City Comptroller indicates that as of November 30, 2015, no notice of claim has been filed by § 87(2)(b) regarding this incident (encl. 07 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

- This is the first complaint filed by [§ 87(2)(b)] with the CCRB (encl. 09 Board Review).
- Sgt. Caesar has the following substantiated allegations against him in his thirteen-year tenure with the New York City Police Department:
 - In CCRB 200302347, an allegation of physical force was substantiated against Sgt. Caesar, and the Board recommended charges; he was found not guilty at a departmental trial.
 - In CCRB 200400239, an allegation of retaliatory summons was substantiated against Sgt. Caesar. The Board recommended charges, but the “charge” was dismissed by the Department Advocate’s Office.
- This is the first complaint filed against PO Chen in his two-year tenure with the New York City Police Department.

Potential Issues

[§ 87(2)(b)] said that when the incident began, he was with his friends [§ 87(2)(b)] (identified later as [§ 87(2)(b)] and [§ 87(2)(b)] who he described as a friend of [§ 87(2)(b)] – however, [§ 87(2)(b)] could not provide full names, addresses, phone numbers, or any contact information for these individuals at the time of his statement to the CCRB. On December 21, 2015, [§ 87(2)(b)] called the undersigned and provided two phone numbers for witnesses [§ 87(2)(b)] and [§ 87(2)(b)] the latter of whom was the individual who [§ 87(2)(b)] described as witnessing the allegations that allegedly took place inside of the 40th Precinct stationhouse. [§ 87(2)(b)] was being held inside of a holding cell at the time when [§ 87(2)(b)] was brought into the stationhouse.

An unverified phone statement was obtained from [§ 87(2)(b)] but [§ 87(2)(b)] was unable to provide any further contact information or full names for other witnesses, as he said his phone was damaged and he lost all of his contact numbers. [§ 87(2)(b)] also did not witness any portion of the allegations.

LexisNexis and CLEAR database searches performed on January 11, 2016, indicated two potential addresses for [§ 87(2)(b)] but no phone number. Two letters were sent to [§ 87(2)(b)]’s potential addresses on January 12 and 19, 2016; these letters were not returned by the USPS. As of the date of this report, [§ 87(2)(b)] has not responded to these contact attempts.

IAB misplaced the original request for the 40th Precinct prisoner holding cell log submitted on November 16, 2015. These documents were re-requested and were received January 22, 2016. The holding cell log cross-referenced with the command log indicated there were three other individuals in the holding cells at the time [§ 87(2)(b)] was brought in – [§ 87(2)(b)] and [§ 87(2)(b)]. LexisNexis and CLEAR database searches performed on January 25, 2016, were negative for any other contact information, but a Booking, Arraignment, and Disposition System database search did provide an apartment number for [§ 87(2)(b)]. Letters were sent to each of these individuals on January 25 and February 1, 2016; these letters were not returned by the USPS. As of the date of this report, none of these individuals have responded to these contact attempts.

In a phone conversation on November 30, 2015, [§ 87(2)(b)] told the undersigned that he had given all his witnesses’ phone numbers to an unidentified IAB investigator on an unknown date, and he no longer has any contact information for his witnesses.

On December 2, 2015, the in-house IAB Unit was unable to confirm if there was a concurrent IAB investigation, and so a Reznick Letter was submitted on that date. This letter was fulfilled on December 14, 2015, confirming that an original log was referred to the Office of the Chief of the Department (OCD). On December 16, 2015, a phone call was made to OCD and SPAA Jordan stated that the case was forwarded to the Office of the Chief of Patrol. A follow-up phone call to Chief of Patrol was made, and Sgt. Bukowski (first name unknown) confirmed that there was no record of the case, and it had probably not yet been received after being sent out by OCD. Another phone call was made to Chief of Patrol on January 5, 2016, and PO Magdalena Cornier confirmed they still have not received the case from OCD. On January 11, 2016, another phone call was made to OCD, and Manager Brown (first name unknown) advised that the only allegation was missing property § 87(2)(g)

There was no IAB callout investigation done and no IAB log, and it is unknown who § 87(2)(b) allegedly gave such information to.

Attempts To Obtain Video Footage

§ 87(2)(b) filed this complaint just under three months from the incident date. The late filing of this complaint limited the chance of obtaining any potential video footage related to this case.

This case took place across the street from the Patterson Houses NYCHA development. However in a phone call on November 16, 2015, § 87(2)(b) from NYCHA stated that surveillance footage is kept only for thirty days.

Finding and Recommendations

Officer Identification

§ 87(2)(b) alleged that after Sgt. Caesar took him to the ground inside the 40th Precinct stationhouse, unidentified officers he could not see or describe rushed over and began to punch and strike him. § 87(2)(b) was unable to describe which other officers took part in the alleged force, as he was on the floor facing away from them. PO Rodriguez and PO Chen both described other unidentified officers in the stationhouse coming over; PO Rodriguez specifically said two uniformed officers began to walk over, but all three men were already on their feet and the incident over by the time they arrived. § 87(2)(g)

Recommendations

Allegations Not Pleaded

- **Abuse of Authority – Stop:** PO Rodriguez testified he stopped a male briefly who was allegedly walking with § 87(2)(b) in regards to an alleged hand-to-hand transaction he had observed. § 87(2)(b) testified that he was walking away from the initial scene in the company of a female, whom he identified as § 87(2)(b). PO Chen and Sgt. Caesar did not recall the individual's gender or any further information about this individual. § 87(2)(g)

Allegation A—Abuse of Authority: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar stopped § 87(2)(b)

§ 87(2)(b) alleged that as he walked away from the scene of the car stop, he adjusted the position of his shorts by pulling up on his waistband with his hand (encl. 01 Board Review). Immediately after, the police vehicle containing Sgt. Caesar, PO Chen, and PO Rodriguez pulled alongside him and all three officers approached. Sgt. Caesar asked § 87(2)(b) for his identification, and stated that he “felt § 87(2)(b) was brandishing a firearm at [Sgt. Caesar] when [he] adjusted [his] shorts.” § 87(2)(b) testified that Sgt. Caesar asked § 87(2)(b) for her name and identification as well. § 87(2)(b) denied that he was doing so or attempting to simulate a firearm, and told the officers they would have seen if he was really carrying a gun.

§ 87(2)(g). Sgt. Caesar noticed § 87(2)(b) pacing in an agitated manner, adjusting his waistband three or four times before walking away, which immediately drew his attention (encl. 04 Board Review). While watching this occur, Sgt. § 87(2)(b) alleged that he saw § 87(2)(b) pass an unknown item to an unknown individual in the crowd, who walked away. At this point Sgt. Caesar effected the stop of § 87(2)(b) based on his observations and the belief that § 87(2)(b)'s actions suggested he might be carrying a weapon.

PO Rodriguez corroborated observing § 87(2)(b) pass a small unknown object to an unknown individual as they walked away from the scene of the car stop, and added that he also observed a black shiny Nike glove in § 87(2)(b)'s waistband which he suspected initially of being an unspecified weapon (encl. 06 Board Review). PO Rodriguez further believed that § 87(2)(b) was walking with another man who quickly fled upon officers' approach, but did not obtain this individual's identification, § 87(2)(g).

PO Chen stated that § 87(2)(b) was drawing attention to himself due to his loudness, but did not himself observe the conduct that led to § 87(2)(b)'s stop, but was instead informed by his partners afterwards (encl. 05 Board Review). PO Chen testified that he observed § 87(2)(b) walking with an unknown individual, and also that Sgt. Caesar and PO Rodriguez went over to § 87(2)(b) as soon as they exited the RMP.

§ 87(2)(b) was unable to provide a last name, contact information, or any other information for his friend § 87(2)(b). § 87(2)(b) did provide the phone number for his friend § 87(2)(b) but § 87(2)(b) drove off and was not present on the scene at the moment that § 87(2)(b) was stopped and these allegations took place (encl. 02 Board Review). As such, no statements could be obtained from independent witnesses.

An officer may stop an individual when he has reasonable suspicion that said individual has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 12 Board Review). Clutching the waistband may be considered a furtive movement, but without any further justification to suspect criminality afoot, does not constitute a reason for a stop. People v. Michael H., 2014 N.Y. Misc. LEXIS 1529 (2014) (encl. 11 Board Review).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

as such, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Discourtesy: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that immediately prior to his arrest, Sgt. Caesar said to him, “You’re a smartass, we’re asking the questions.”

All three officers on scene denied Sgt. Caesar used any discourtesy.

As discussed above, § 87(2)(b) was unable to provide names, contact information, or any avenues by which his alleged witnesses could be located. The investigation was unsuccessful in locating any witnesses to these allegations.

§ 87(2)(g)

It is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C—Abuse of Authority: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar refused to provide his name and shield number to § 87(2)(b)

Allegation D—Abuse of Authority: At 3rd Avenue and East 141st Street in the Bronx, PO Alex Chen refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that while the officers were struggling to put § 87(2)(b) in handcuffs and § 87(2)(b) was resisting, he asked Sgt. Caesar and PO Chen for their names and shield numbers. § 87(2)(b) alleged that they ignored this request, and continued to attempt to handcuff him.

PO Chen and Sgt. Caesar denied that § 87(2)(b) ever asked for this information. PO Rodriguez did not recall if § 87(2)(b) made such a request.

As discussed above, § 87(2)(b) was unable to provide names, contact information, or any avenues by which his alleged witnesses could be located. The investigation was unsuccessful in locating any witnesses to these allegations. § 87(2)(g)

it is recommended that **Allegations C and D** be closed as **unsubstantiated**.

Allegation E—Force: At 3rd Avenue and East 141st Street in the Bronx, Sgt. Colin Caesar used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that the officers tried to pull him towards the RMP while in handcuffs, and he tried to pull away. Sgt. Caesar then allegedly wrapped his left forearm around § 87(2)(b)'s neck and placed his right hand on the back of § 87(2)(b)'s head, holding him in a headlock as he walked him over. The headlock lasted for about sixty seconds, and did not cut off § 87(2)(b)'s breathing. Sgt. Caesar's forearm was in contact with the front of § 87(2)(b)'s neck and he described the contact as a “chokehold.”

All three officers on scene denied that Sgt. Caesar had any contact of any type with § 87(2)(b)'s neck. PO Chen and PO Rodriguez were the primary officers who handcuffed § 87(2)(b).

§ 87(2)(b) overcame resistance, and placed him into the RMP. They corroborated § 87(2)(b)'s testimony that he was resisting, trying to flee, and refusing to get into the RMP.

§ 87(2)(a) PHL § 18(6)

As covered above, no independent witnesses could be found to provide a statement as to what happened, nor was any video footage obtainable due to the late filing of this complaint.

§ 87(2)(g)

It is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F— Force: Inside the 40th Precinct stationhouse, Sgt. Colin Caesar used physical force against § 87(2)(b)

Allegation G— Force: Inside the 40th Precinct stationhouse, PO Alex Chen used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while the officers walked him into the 40th Precinct stationhouse processing room in handcuffs, Sgt. Caesar flung him forward onto the floor without any provocation. The landing caused § 87(2)(b) to sustain an injury to his toenail. Sgt. Caesar then allegedly held § 87(2)(b) down ordering him to relax, while PO Chen and possibly up to six unidentified officers that § 87(2)(b) could not see punched and kicked him on his back for five minutes.

After this, EMS was called to the 40th Precinct stationhouse. § 87(2)(a) PHL § 18(6)

Officer testimony was consistent in describing § 87(2)(b) as resistant and combative throughout the transportation to the stationhouse, kicking and spitting at officers. While being led into the processing area of the holding cells, all officers testified that § 87(2)(b) intentionally tripped PO Chen with his legs, causing PO Chen, § 87(2)(b) and PO Rodriguez to fall to the ground altogether. Some other unidentified officers in the stationhouse ran over in the aftermath of this incident, but did not get involved. PO Rodriguez and Sgt. Caesar lifted § 87(2)(b) up and placed him into the holding cell. The latter two alleged that § 87(2)(b) sustained a cut to his eyebrow from falling down, for which EMS was called to the stationhouse. All officers denied that § 87(2)(b) was punched, kicked, struck, or had force used against him in any way. No Medical Treatment of Prisoner Form was prepared for this incident.

§ 87(2)(g)

§ 87(2)(b) watched from inside the holding cell two rooms away as the officers flung § 87(2)(b) to the floor, though he could not recall exactly how this happened. § 87(2)(b) testified that several uniformed and plainclothes officers stomped on § 87(2)(b)'s face, punched him numerous times in the face, and “did everything they could to get him to stop resisting” before placing him in the holding cell. These allegations are not alleged by § 87(2)(b). § 87(2)(b) described himself as an acquaintance of § 87(2)(b)'s, but only knew his street name and did not immediately recognize § 87(2)(b)'s real name.

Contact attempts were exhausted to the three other individuals who were in the holding cell at the time this incident was occurring.

§ 87(2)(a) PHL § 18(6)

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Though § 87(2)(b) complained of a toe injury and chest contusion in § 87(2)(b) a day after the incident, at the time of the incident when EMS was called, § 87(2)(b) complained of and solely was treated for the abrasion to the face, which he claimed was sustained by falling off a bench. § 87(2)(b) made no allegation of force to EMS, much less a sustained beating for five or six minutes. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations F and G** be closed as **unfounded**.

Allegation H— Force: Inside the 40th Precinct stationhouse, officers used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **officers unidentified**.

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date